

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING FOR REPAIRS OF PUBLIC SWIMMING POOLS
5 USING THE MONTANA COAL ENDOWMENT PROGRAM; ADDING PUBLIC SWIMMING POOLS TO THE
6 PROJECTS THAT CAN BE FUNDED BY THE PROGRAM; REVISING A DEFINITION; AND AMENDING
7 SECTION 90-6-701, MCA."

8

9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

10

11 **Section 1.** Section 90-6-701, MCA, is amended to read:

12 **"90-6-701. Montana coal endowment program created -- definitions.** (1) (a) There is a Montana
13 coal endowment program that consists of:

- 14 (i) the Montana coal endowment fund established in 17-5-703;
15 (ii) the infrastructure portion of the coal severance tax bond program provided for in 17-5-701(2).
16 (b) The Montana coal endowment program may borrow from the board of investments to provide
17 additional financial assistance for local government infrastructure projects under this part, provided that no part
18 of the loan may be made from retirement funds.

19 (2) Interest from the Montana coal endowment fund and from proceeds of the sale of bonds under
20 17-5-701(2) may be used to provide financial assistance for local government infrastructure projects under this
21 part, to provide funding to the department of commerce for the administrative costs of the Montana coal
22 endowment program, and to repay loans from the board of investments.

23 (3) As used in this part, the following definitions apply:

24 (a) "Infrastructure projects" means:

- 25 (i) drinking water systems;
26 (ii) wastewater treatment;
27 (iii) sanitary sewer or storm sewer systems;
28 (iv) solid waste disposal and separation systems, including site acquisition, preparation, or

1 monitoring; or

2 (v) bridges; or

3 (vi) public swimming pools.

4 (b) "Local government" means an incorporated city or town, a county, a consolidated local
5 government, a tribal government, a county or multicounty water, sewer, or solid waste district, or an authority as
6 defined in 75-6-304.

7 (c) "Montana coal endowment fund" means the coal severance tax infrastructure endowment fund
8 established in 17-5-703(1)(b).

9 (d) "Montana coal endowment program" means the local government infrastructure investment
10 program established in subsection (1).

11 (e) "Public swimming pool" has the meaning provided in 50-53-102.

12 ~~(e)~~(f) "Tribal government" means a federally recognized Indian tribe within the state of Montana."

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